

UNITED STATES)
)
 vs) Before Judge Wilkerson
)
ALPHONSE CAPONE)

Chicago, Friday, July 31, 1931.

Ten o'clock A. M.

Court met pursuant to adjournment.

PRESENT: As before

- - - - -

THE COURT: In the income tax cases, the motion to withdraw the plea of guilty is granted. As the cases are to be tried, the interests of justice require that there be no further comment upon the proposed recommendation or the arrangement that was attempted with reference to it.

The case is set for trial on the 8th of September. There will be an order for a venire of 100 jurors.

As to the conspiracy case, the ruling is reserved, and the motion taken under advisement and continued for disposition until September 8th. The matters covered by that indictment should be pre-

sented to another grand jury. The in enumeration of overt acts the defendant and others are charged with substantial offenses within the period of the statute of limitations for which a heavier penalty is provided than that possible under the conspiracy indictment. The court will not believe unless it is forced to do so that the language of this indictment was chosen without probable cause, merely for the purpose of creating the impression that this defendant had been a flagrant law breaker over a long period of time. This is a matter which must be inquired into fully.

The case will be set for trial in September.

MR. JOHNSTON: Your Honor, on one matter, the Government has witnesses in several states. We want to try the case at an early date. I have discussed that with the agents, and I think we would almost need until the last week of September. If the court would give us that time, by the last week of September we could be ready.

THE COURT: I have set it for the 8th because my court engagements are such that if I hear the case I can hear it on the 8th. If I do not hear it on the 8th my other court engagements are such you will

probably have to get another judge.

MR. AHERN: May I say this: I want to be perfectly frank with the court. As far as I am personally concerned, your Honor, I would just as soon try a case before you as anybody. I think you are fair on your rulings, and all that sort of thing. But I know the attitude of the defendant and I think he thinks you are prejudiced.

THE COURT: There is a method provided for you in such cases.

MR. AHERN: Yes. But I just want to state that to you now.

THE COURT: Allright.

MR. JOHNSON: May we leave it this way, your Honor: There are quite a large number of --

THE COURT: I will leave it this way: Strike out the order for the jurors, and the case will be continued until the 8th of September to be set for trial.

MR. JOHNSTON: At an early date.

THE COURT: Yes, at an early date.

MR. JOHNSON: That will be very agreeable.

(WHEREUPON the further hearing of the above entitled cause was continued to September 8th, A.D. 1931)

SATTERLEE & BINNS, INC.
COURT, CONVENTION AND PRESS REPORTERS
1101 ASHLAND BLOCK
CHICAGO
TELEPHONE CENTRAL 5645